

Tentative Rulings for Department 501

Begin at the next page

(41)

Tentative Ruling

Re: ***Angela Fullilove v. Lisa Ann Golik M.D.***
Superior Court Case No. 23CECG04115

Hearing Date: July 23, 2026 (Dept. 501)

Motion: For Summary Judgment by Defendant Saint Agnes Medical Center

Tentative Ruling:

To grant the motion for summary judgment. Defendant Saint Agnes Medical Center is directed to submit to this court, within five days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

Explanation:

Plaintiff, Angela M. Fullilove (Plaintiff or Ms. Fullilove), sued two medical providers, defendants Saint Agnes Medical Center (SAMC) and Lisa Ann Golik, M.D. (Dr. Golik). Plaintiff alleges a single cause of action for general negligence based on medical malpractice against the defendants in connection with the care and treatment provided to Plaintiff on July 5, 2022.

Grounds for Summary Judgment

On a motion for summary judgment, a defendant as the moving party bears the initial burden of proof to show that a plaintiff cannot establish one or more elements of the challenged cause of action or to show that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) Only after the moving party has carried this burden of proof does the burden of proof shift to the other party to show that a triable issue of one or more material facts exists—and this must be shown by specific facts and not mere allegations. (*Ibid.*)

In a medical malpractice case, expert testimony is required unless the challenged conduct is within the common knowledge of laymen. (*Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 1001.)

California courts have incorporated the expert evidence requirement into their standard for summary judgment in medical malpractice cases. When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence. [Citations.]

(*Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984-985, internal quotation marks omitted.)

SAMC Carries Its Initial Burden

To support its motion, SAMC submits the expert declaration of Davina Leary, R.N. (Ms. Leary). In her declarations, Ms. Leary states she has reviewed Plaintiff's complaint filed on October 3, 2023, and Plaintiff's SAMC medical records. SAMC submits 23 volumes of evidence, consisting primarily of Plaintiff's medical records, which exceed 2700 pages.

In paragraph 7 of her declaration, Ms. Leary summarizes the pertinent factual chronology regarding Plaintiff's care and treatment at SAMC as follows:

(a) On July 5, 2022, at or around 13 :37, Ms. Fullilove, a 48-year-old female, underwent a Hysteroscopy Dilation and Curettage performed by [Dr. Golik] at SAMC.

(b) Prior to the procedure, SAMC nursing staff performed a preoperative evaluation and tested Ms. Fullilove for COVID.

(c) Anesthesia records indicated that Ms. Fullilove remained stable throughout the procedure.

(d) Ms. Fullilove tolerated the procedure well and was returned to recovery in stable condition.

(e) In the recovery room, Ms. Fullilove reported suffering from cramping with a pain level of eight out of ten. However, she responded well to medication and her pain level dropped to a four out of ten by the time she was discharged.

(f) At all times in the recovery room, Ms. Fullilove's vitals remained stable and stayed within 20% of her pre-operative report.

(g) Prior to discharge, Ms. Fullilove's was able to take fluids, was oriented, was able to follow 3 step commands, and had a steady gait while ambulating.

(e) Prior to discharge, Ms. Fullilove's temperature was 98.8 degrees and her vital signs were stable.

(t) On July 5, 2022, at or around 15:15, Ms. Fullilove was discharged from SAMC in a wheelchair.

(Leary decl., ¶ 7 [stmt. of evid., tab 3 (part 23)].)

Based on her review of the medical records as summarized above, Ms. Leary opines that SAMC's nursing, non-physician and non-midlevel staff met the applicable standard of care in providing care and treatment to Plaintiff, and specifically opines:

9. The scope of practice for nursing, non-physician and non-midlevel staff does not include performing surgeries, including but not limited to, hysteroscopy surgeries.

10. SAMC's nursing, non-physician and non-midlevel staff appropriately performed a preoperative evaluation of Ms. Fullilove.

11. During her recovery, SAMC's nursing, non-physician and non-midlevel staff properly monitored and assessed Ms. Fullilove.

12. While in the recovery room, there was no indication that Ms. Fullilove was suffering from any complication.

13. Plaintiff met all criteria for discharge and was timely and appropriately discharged.

(Leary decl., ¶¶9-13.)

The evidence presented by SAMC is sufficient to negate Plaintiff's claims against it. Based on this showing, SAMC has shown that Plaintiff cannot establish an essential element of the claim for medical negligence—breach of duty. The burden then shifts to Plaintiff to show the existence of a triable issue of material fact.

Plaintiff Fails to Meet Her Burden

SAMC asks the court to refuse to consider Plaintiff's opposition, which she filed six days late. Resolving all doubts in favor of Plaintiff as the party opposing the summary judgment motion, the court exercises its discretion to consider Plaintiff's late-filed opposition.

As noted above, after considering SAMC's moving papers, the court has determined SAMC meets its initial burden, based on the expert declaration of Ms. Leary, which sets forth a reasoned, detailed, and record-based explanation to show why SAMC's nursing, non-physician, and non-midlevel staff acted within the applicable standard of care. The burden then shifts to Plaintiff to raise a triable issue of material fact.

As SAMC points out in its reply, Plaintiff fails to produce any expert evidence to establish a triable issue of fact on her claims of medical negligence based on the care rendered by SAMC's nursing, non-physician and non-midlevel staff. Plaintiff does not dispute that Ms. Leary possesses the education, training, and experience described in her declaration and is qualified to offer expert opinions. (Fact No. 12.) But Plaintiff offers no expert testimony to rebut Ms. Leary's expert testimony that the care and treatment rendered to Plaintiff by SAMC's nursing, non-physician and non-midlevel staff met the applicable standard of care in providing care and treatment to Plaintiff.

Instead, Plaintiff argues that Ms. Leary's declaration fails to satisfy SAMC's initial burden because she states ultimate conclusions and fails to explain the clinical reasoning. Plaintiff relies on a single case for the proposition that "an opinion unsupported by reasons or explanations does not establish the absence of a material fact issue for

trial, as required for summary judgment.” (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 524, (*Kelley*).) In *Kelley*, the appellate court reversed the trial’s court grant of summary judgment for three reasons: (1) the one-and-a-half-page declaration of the defendant physician’s expert was inadmissible because it did not disclose the matter relied on in forming the opinion (although this deficiency was waived by the plaintiff’s failure to object); (2) the opinion was unsupported by explanations because the expert discussed none of the crucial issues in the case; and (3) the plaintiff presented an opposing expert declaration giving rise to a triable issue of material fact. (*Ibid.*)

Here, Plaintiff herself describes the defendants’ failures in her complaint as follows:

Specifically, Defendants failed to render medical care by the standard of care in their intra-operative surgical techniques and care, pre-operative assessment, and post-operative care. After the July 5, 2023 procedure, Defendants discharged Ms. Fullilove with massive internal injuries[.]

(Comp., p. 4 ¶ GN-1(3).)

Ms. Leary’s declaration identifies the voluminous SAMC medical records she reviewed. She opines that the scope of practice for SAMC’s non-physician-staff does not include performing surgeries, and the care rendered by the staff pre-operative, post-operative, and through discharge met the appropriate standard of care. In its reply, SAMC explains why Ms. Leary’s declaration refutes the premise that her declaration fails to explain the clinical reasoning as follows:

Ms. Leary describes her education, training, and decades of nursing experience, attached her curriculum vitae, identified the materials she review[ed], cites the pertinent clinical facts, and then gives a reasoned explanation of why SAMC’s nursing staff, non-physician staff, and non-midlevel staff met the applicable standard of care including: The scope of practice for nursing, non-physician, and non-midlevel staff does not include performing surgeries, including but not limited to, hysteroscopy surgeries; SAMC’s nursing, non-physician, and non-midlevel staff appropriately performed a preoperative evaluation of Ms. Fullilove; During her recovery, SAMC’s nursing, non-physician, and non-midlevel staff properly monitored and assessed Ms. Fullilove; While in the recovery room, there was no indication that Ms. Fullilove was suffering from any complications; and Plaintiff met all criteria for discharge and was timely and appropriately discharged.

(Rpy., p. 3:3-12.) In sum, Plaintiff fails to meet her burden to show that a triable issue of material fact exists as to her single cause of action for medical negligence against SAMC based on the actions of its non-physician staff.

Request for Judicial Notice

The court grants SAMC’s request for judicial notice of the complaint filed on October 3, 2023, and SAMC’s answer to the complaint filed on May 7, 2025.

Conclusion

The court finds SAMC meets its initial burden to show Plaintiff cannot prove an essential element of medical malpractice. The burden then shifts to Plaintiff to raise a triable issue of material fact, which she fails to do. Therefore, the court grants SAMC's motion for summary judgment.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 07/21/26
(Judge's initials) (Date)